b. Subparagraph (4) *Time for submission of applications* is deleted.

2. Section 373.56 *Selenium containing chemical compounds, including pigments* is amended in the following particulars:

a. Paragraph (a) *General* is amended to read as follows:

(a) *General.* License applications to export selenium containing chemical compounds, including pigments, Schedule B Nos. 829810, 830980, 839750, 839900 and 842900, will be considered for approval in accordance with the licensing policy described in paragraphs (b) and (c) of this section.

b. Paragraph (d) *Time for submission of applications* is deleted.

3. Section 373.81 *Supplement 1; Time schedules for submission of applications to export certain Positive List commodities* is amended by deleting the following entries:

Dept. of Commerce Schedule B No.	Commodity	Submission dates
619159	Selenium powder	Mar. 15–Apr. 1, 1957.
622098	Ferroselenium	
664998	Selenium metal, except selenium-bearing scrap materials	
829810	Selenium-containing rubber compounding agents not of coal tar origin; accelerators	
830980	Selenous acid (selenious acid)	
839750	Selenium salts of organic compounds	
839900	Selenium salts and compounds, including selenium dioxide	
842900	Selenium-containing pigments	

This amendment shall become effective as of April 16, 1957.

(Sec. 3, 63 Stat. 7, as amended; 50 U. S. C. App. 2023. E. O. 9630, 10 F. R. 12245, 3 CFR, 1945 Supp., E. O. 9919, 13 F. R. 59, 3 CFR, 1948 Supp.)

REX A. ANDERSON,
Acting Director,
Bureau of Foreign Commerce.

[F. R. Doc. 57-3051; Filed, Apr. 16, 1957; 8:47 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

Subchapter C—Drugs

PART 146e—CERTIFICATION OF BACITRACIN AND BACITRACIN-CONTAINING DRUGS

FEED GRADE ZINC BACITRACIN POWDER ORAL VETERINARY

Under the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357) and delegated to the Commissioner of Food and Drugs by the Secretary (22 F. R. 1045), § 146e.427 *Feed grade bacitracin powder oral veterinary* * * * (21 CFR, 1956 Supp., 146e.427) is amended in paragraph (b) *Packaging* * * * by changing the words "their expiration date" to read: ", if it is feed grade zinc bacitracin powder oral veterinary its expiration date".

Notice and public procedure are not necessary prerequisities to the promulgation of this order, and I so find, since it was drawn in collaboration with interested members of the affected industry, and since it would be against public interest to delay providing for the amendment set forth herein.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371. Interprets or applies sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357)

Dated: April 11, 1957.

[SEAL] GEO. P. LARRICK,
Commisioner of Food and Drugs.

[F. R. Doc. 57-3049; Filed, Apr. 16, 1957; 8:46 a. m.]

TITLE 29—LABOR

Chapter V—Wage and Hour Division, Department of Labor

PART 782—EXEMPTION FROM MAXIMUM HOURS PROVISIONS FOR CERTAIN EMPLOYEES OF MOTOR CARRIERS

STATUTORY PROVISIONS CONSIDERED

In accordance with section 3 (a) of the Administrative Procedure Act and General Order No. 45–A (15 F. R. 3290) of the Secretary of Labor, effective on publication in the FEDERAL REGISTER, § 782.1 (a) of Title 29 of the Code of Federal Regulations is hereby amended to read as follows:

§ 728.1 *Statutory provisions considered.* (a) Section 13 (b) (1) of the Fair Labor Standards Act provides an exemption from the maximum hours and overtime requirements of section 7 of the act, but not from the minimum wage requirements of section 6. The exemption is applicable to:

> Any employee with respect to whom the Interstate Commerce Commission has power to establish qualifications and maximum hours of service pursuant to the provisions of section 204 of the Motor Carrier Act, 1935,[2]

except that the exemption is not applicable to any employee with respect to whom the Interstate Commerce Commission has power to establish qualifications and maximum hours of service solely by virtue of section 204 (a) (3a) of Part II of the Interstate Commerce Act.[2a] The act confers no authority on the administrator to extend or restrict the scope of this exemption. It is settled by decisions of the United States Supreme Court that the applicability of the exemption to an employee otherwise entitled to the benefits of the Fair Labor Standards Act is determined exclusively by the existence of the power of the Interstate Commerce Commission under section 204 of the Motor Carrier Act, to establish qualifications and maximum hours of service with respect to him. It is not material whether such qualifications and maximum hours of service have actually been established by the Commission; the controlling consideration is whether the employee comes within the power of the Commission to do so. The exemption is not operative in the absence of such power, but an employee with respect to whom the Commission has such power is excluded, automatically, from the benefits of section 7 of the Fair Labor Standards Act.[4]

(52 Stat. 1060, as amended; 29 U. S. C. 201–219)

Signed at Washington, D. C., this 12th day of April 1957.

NEWELL BROWN,
Administrator.

[F. R. Doc. 57-3074; Filed, Apr. 16, 1957; 8:51 a. m.]

[2] Part II of the Interstate Commerce Act, 49 Stat. 546, as amended; 49 U. S. C. 304.

[2a] Pub. No. 939, 84th Cong., 2d Sess. (Aug. 3, 1956, secs. 2 and 3).

[4] Southland Gasoline Co. v. Bayley, 319 U. S. 44; Boutell v. Walling, 327 U. S. 463; Levinson v. Spector Motor Service, 330 U. S. 649; Pyramid Motor Freight Corp., v. Ispass, 330 U. S. 695; Morris v. McComb, 332 U. S. 422.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1397]

[1327894]

CALIFORNIA

REVOKING EXECUTIVE ORDER NO. 5038 OF FEBRUARY 2, 1929, WHICH WITHDREW LANDS IN CALIFORNIA FOR CLASSIFICATION; CORRECTION

APRIL 11, 1957.

In FEDERAL REGISTER Document 57–2093, appearing as Public Land Order No. 1397 at pages 1843–1844 of the issue for Wednesday, March 20, 1957, the date in paragraphs 7a (2) and (3) and 7b is amended to read July 19, 1957, instead of June 19, 1957.

E. J. THOMAS,
Associate Director.

[F. R. Doc. 57-3070; Filed, Apr. 16, 1957; 8:50 a. m.]

[Public Land Order 1398]

[Colorado 06890 et al.]

COLORADO

REVOKING PUBLIC LAND ORDERS NOS. 1008 AND 1092; PARTIALLY REVOKING PUBLIC LAND ORDERS NOS. 459, 494, 565, 698, AND 779, WHICH RESERVED PUBLIC LANDS AND MINERALS IN PATENTED LANDS FOR USE OF THE ATOMIC ENERGY COMMISSION; CORRECTION

APRIL 11, 1957.

Public Land Order No. 1398 of March 15, 1957, appearing as Federal Register Document 57–2187, at pages 1987–1989 of the issue for March 26, 1957, is hereby corrected as follows:

1. The land description in paragraph 3, so far as such description relates to lands in sec. 33, T. 45 N., R. 18 W., should read: sec. 33, E½, SE¼NW¼, and SE¼SW¼.

2. The land description in paragraph 4, so far as such description relates to lands in sec. 23, T. 44 N., R. 17 W., should read: sec. 23, SW¼NW¼SW¼, W½ SE¼, and SE¼SE¼.

3. Add to paragraph 4, T. 44 N., R. 17 W., the following lands: sec. 24, SW¼SW¼.

4. Correct the duplication in paragraph 5 by deleting the following-described lands where they first appear:

T. 46 N., R. 17 W.,
Sec. 23, E½ and E½NW¼;
Sec. 25, N½NE¼ and E½NW¼.

EDWARD WOOZLEY,
Director.

[F. R. Doc. 57-3071; Filed, Apr. 16, 1957; 8:50 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter B—Carriers by Motor Vehicle

[No. MC-C-2078]

PART 211—SCOPE OF OPERATING AUTHORITY: ROUTES

DEVIATION RULES AND REGULATIONS GOVERNING USE OF RELOCATED, RENUMBERED, AND ALTERNATE HIGHWAYS, DEVIATION FROM AUTHORIZED ROUTES, AVOIDANCE OF SPECIFIED POINTS OR GATEWAYS, SERVICE AT MILITARY INSTALLATIONS, AND DEADHEADING OF EMPTY VEHICLES BY MOTOR COMMON AND CONTRACT CARRIERS SUBJECT TO INTERSTATE COMMERCE ACT

Upon consideration of the representations filed in the above-entitled proceeding in response to the notice of proposed rule making dated February 11, 1957, and good cause therefor appearing:

It is ordered, That the effective date of the rules is hereby postponed to June 3, 1957.

Dated at Washington, D. C., this 10th day of April A. D. 1957.

By the Commission.

[SEAL] HAROLD D. McCOY,
Secretary.

[F. R. Doc. 57-3075; Filed, Apr. 16, 1957; 8:51 a. m.]

PROPOSED RULE MAKING

CIVIL AERONAUTICS BOARD

[14 CFR Parts 40, 41, 42]

[Draft Release 57-7]

EMERGENCY EVACUATION EQUIPMENT FOR DC-3 TYPE AIRPLANES

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety, notice is hereby given that the Bureau will propose to the Board the adoption of a Special Civil Air Regulation waiving the requirements of Parts 40, 41, and 42 of the Civil Air Regulations as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, Attention Bureau of Safety, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by May 13, 1957. Copies of such communications will be available after May 15, 1957, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Sections 40.173, 41.23d, and 42.24c effective November 28, 1955, require in part that after May 31, 1957, on all passenger-carrying airplanes, at all emergency exits which are more than 6 feet from the ground with the airplane on the ground and with the landing gear extended, means shall be provided to assist the occupants in descending from the airplane. This requirement was adopted on the basis of experience which had shown that in certain instances, it is essential that some means be provided to assist passengers in evacuating airplanes on the ground.

In considering the application of this emergency evacuation requirement to the DC-3 airplane, however, it became apparent that it would impose a serious economic burden on the operators of this airplane without a commensurate increase in safety. The rear window emergency exit of this airplane is just over six feet from the ground, with the landing gear extended, and accordingly would require the special means of descent prescribed. However, the main passenger door and two emergency window exits which are located over the wings require no such special means of descent and afford an excellent means of emergency evacuation; hence, it is not considered necessary to compel redesign of the rear window emergency exit to meet the new requirements. Furthermore, a study of DC-3 airplane accidents from 1938 through 1955 does not disclose any incident in which the absence of special means to assist passengers descend from the rear emergency window exit adversely affected the emergency evacuation of the passengers. Accordingly, the Bureau is of the view that it is not necessary in the public interest to require that means be provided to assist occupants descend from the rear window emergency exit of a DC-3 airplane. It should be noted, however, that nothing in this proposed regulation will prevent a DC-3 operator from installing a means of assistance for descent should he so desire.

In view of the foregoing, notice is hereby given that the Bureau will recommend to the Board the adoption of a Special Civil Air Regulation to read as follows:

Contrary provisions of Parts 40, 41, and 42 of the Civil Air Regulations notwithstanding, after May 31, 1957, means need not be provided to assist the occupants of a passenger-carrying DC-3 airplane in descending from the airplane by way of the emergency rear window exit: *Provided*, That the authority contained herein shall not apply to DC-3 airplanes which are operated with a seating capacity in excess of the maximum number specified in Special Civil Air Regulations No. SR-389 for DC-3 airplanes with 4 exits authorized for passenger use.

This regulation is proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended. The proposal may be changed in the light of comments received in response to this notice of proposed rule making.

(Sec. 205 (a), 52 Stat. 984; 49 U. S. C. 425 (a). Interpret or apply secs. 601-610, 52 Stat. 1007, 1012, as amended; 49 U. S. C. 551-560)

Dated at Washington, D. C., March 29, 1957.

By the Bureau of Safety.

[SEAL] OSCAR BAKKE,
Director.

[F. R. Doc. 57-3078; Filed, Apr. 16, 1957; 8:52 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Parts 904, 934, 996, 999]

[Docket Nos. AO-14-A25; AO-83-A21; AO-203-A7; AO-204-A7]

MILK IN GREATER BOSTON, MERRIMACK VALLEY, SPRINGFIELD, AND WORCESTER, MASS., MARKETING AREAS

DECISION WITH RESPECT TO PROPOSED MARKETING AGREEMENTS AND PROPOSED AMENDMENTS TO THE ORDERS, AS AMENDED

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was conducted in Montpelier, Vermont, on December 3, and in Boston, Massachusetts, on December 4-7, 1956, pursuant to a notice thereof which was published in the FEDERAL REGISTER on November 1, 1956, (21 F. R. 9069; F. R. Doc. 56-9544) upon proposed amendments to the tentatively approved marketing agreements and to the orders now in effect, regulating the handling of milk in the Greater Boston, Merrimack Valley, Springfield, and Worcester, Massachusetts, marketing areas.

Upon the basis of the evidence introduced at the hearing and the record thereof, the Deputy Administrator, Agricultural Marketing Service, on March 5, 1957 filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision and opportunity to file written exceptions thereto which was published in the FEDERAL REGISTER on March 8, 1957 (22 F. R. 1511; F. R. Doc. 57-1787).